

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on November 6, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On November 6, 2023, a complaint was submitted to this Agency by Ms. A.A.A. (hereinafter, the complainant) against HOTELES TURÍSTICOS UNIDOS, S.A. (hereinafter, the respondent) for not having duly addressed her right of access.

The complainant states that on October 5, 2023, she sent a request for access to recordings from the video surveillance system of a hotel establishment belonging to the respondent, sending her request to the email address ***EMAIL.1, without having received a response once the deadline for this had passed.

She provides a copy of the email sent, a certificate of sending, a written request, and a photograph of the complainant sent to the respondent.

This Agency has verified that in the Privacy Policy published on the respondent's website, while the postal channel is listed as a means for exercising data protection rights, the email address of the Data Protection Officer of the respondent is also published: ***EMAIL.1, to which the complainant's access request was sent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent states that they received the complainant's request exercising her right of access, but that they did not address the said right because the requested images were to be provided in a trial due to a labor lawsuit filed by the complainant, as indicated by the order of the Social Court No. XX of Madrid dated ***DATE.1.

The respondent indicates that they are not required to provide the images in advance but will submit them at the trial, the proceedings of which are known to the complainant, who is a party to them.

The respondent states that their system automatically deletes recordings within a period of less than one month, so the person responsible for it made a copy of the requested images, adopting the relevant technical and organizational measures to prevent their processing, including viewing, for their provision to judges and courts.

The respondent asserts that they have acted in good faith at all times and have followed the course of the judicial process initiated by the complainant, from which she later withdrew, as recorded in the withdrawal record of November 30, 2023, of which they provide a copy. The respondent was going to submit the images at the trial.

In connection with this complaint, the respondent states that they have updated their request models for images (they provide a copy) to exercise judicial actions.

Finally, they indicate that after the complainant withdrew her lawsuit in the judicial process, they would consider a new request for access to these images by the complainant.

They provide a copy of the response sent to the complainant indicating that the images would be delivered in court to uphold her right to defense and to protect the rights of third parties appearing in the recordings.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied because the respondent has not proven that they facilitated access, thereby harming the complainant's right to effective judicial protection, to which they could have facilitated (if not the images due to the presence of third parties) access through a certified letter specifying the complainant's data subject to processing with as much precision as possible.

Consequently, on February 6, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the

Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing, so that within ten working days, they could present any allegations they deemed appropriate.

The respondent indicates, in summary, that "(...) We reiterate all the points mentioned in our allegations submitted to the AEPD on 12/29/2023. Specifically, regarding the chronology of events, which is of vital importance, considering that in parallel to the exercise of rights, on 10/05/2023, the applicant had filed a lawsuit against this entity, among others, of which we were informed on 10/10/2023. It is in that transfer that the Social Court No. XX of Madrid decides to rule that there is no need to provide the evidence in advance, referring to the request of the plaintiff for HOTELES TURÍSTICOS UNIDOS S.A. to submit the video surveillance recording prior to the hearing, which was to take place on 11/30/2023.

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Consequently, following the ruling by the judicial authority, one day prior, on 29/11/2023, the entity responsible for the surveillance images, ALAIN HOTELS, S.L.U, responded to the request for the right of access in question, indicating, among other things, that the recording would be provided at the hearing, which is the appropriate procedural moment according to the judicial authority."

However, the responding party did not have the opportunity to submit those images to the Court because it communicated to them the withdrawal of the claimant's intention to continue with the judicial procedure.

"3. Regarding the assertion of the AEPD, claiming that access could have been "provided (if not the images due to the presence of third parties) through a certified letter in which, as precisely as possible, the data of the claimant subject to the processing would be specified," it is important to highlight that this would not have been a correct response nor in accordance with the interests of either party, based on the following reasons:

- In the written request for the exercise of the right of access, the "video recordings from the surveillance cameras" are specifically requested, clearly reflecting that what was truly of interest, according to their communications, was the assurance of the recordings (which was carried out and communicated), not a written specification of what occurred in them, a description that can easily fall into subjectivism and create defenselessness for the parties in the judicial procedure.
- The entity responsible for the images had to assert its right to defense, as well as fulfill its legal obligation to protect the rights of data protection, privacy, and personal image of the other individuals appearing in the requested surveillance recordings."

The responding party states that "Finally, once the reasons for denying the right of access have disappeared due to the conclusion of the judicial procedure in which HOTELES TURÍSTICOS UNIDOS S.A. was the defendant, access to the data has been provided through a description of the surveillance images, and proof of this is Document 1 that we attach."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they deem appropriate. The claimant has indicated, in summary, and as far as this procedure is concerned, that the responding party sent them two responses. The first, dated November 29, 2023, denying their request because the requested images were to be presented in the judicial procedure, and the second, dated April 19, 2024, in which no copy of the images is provided, but rather a description of said surveillance images.

"The request for access should have been granted regardless of the labor lawsuit filed by the claimant. It is not the labor lawsuit, or not only it, that justifies the claimant exercising their right of access. But HOTUSA, in a..."

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distorted interpretation of the norm and the scope of her right to defense, links the labor claim of the plaintiff to her request for access to the video surveillance recordings. And on such an absurd basis, she relies to deny such access.”

The claiming party indicates that “(...) In the present case, the legitimate interest invoked seems to refer especially to the fundamental right to effective judicial protection (art. 24 CE), insofar as the recorded images will be used, as the consultant alleges, to obtain evidence for a subsequent complaint for a crime, or a claim for extracontractual or contractual liability (...)

The scope of the right to judicial protection in relation to evidence has been addressed, among others, in STC 212/2013, of December 16, which refers, citing STC 88/2014, of May 28, to “the intimate relationships of the right to evidence with other rights guaranteed in art. 24 CE. Specifically, in our constitutional doctrine, we have emphasized the connection of this specific constitutional right with the right to effective judicial protection (art. 24.1 CE), whose scope includes issues related to evidence (SSTC 89/1986, of July 1, FJ 2; 50/1988, of March 22, FJ 3; 110/1995, of July 4, FJ 4; 189/1996, of November 25, FJ 3; and 221/1998, of November 24, FJ 3), and with the right of defense (art. 24.2 CE), from which it is inseparable (SSTC 131/1995, of September 11, FJ 2; 1/1996, of January 15, FJ 2; and 26/2000, of January 31, FJ 2)” (STC 19/2001, of January 29, FJ 4; and, in the same sense, STC 133/2003, of June 30, FJ 3). In the aforementioned SSTC 19/2001 and 133/2003, the Constitutional Court pointed out that “it has been precisely this inseparable connection (with the other fundamental rights mentioned, particularly the right to obtain effective judicial protection), which has allowed us to affirm that the essential content of the right to use relevant means of evidence is integrated by the legal power recognized to those who intervene as litigants in a process to provoke the necessary procedural activity to achieve the conviction of the judicial body regarding the existence or non-existence of the facts relevant to the decision of the conflict subject to the process (see, among others, STC 37/2000, of February 14, FJ 3).”

The relationship between the rights to the protection of personal data and to judicial protection has also been analyzed in the Report of this AEPD 469/2011 of December 30, 2011, in which the following is indicated:

“At this point, it should be noted that this Agency has already had the opportunity to analyze the possible concurrence in a specific case of data processing of the fundamental rights to the protection of personal data and to effective judicial protection of the data controller. Thus, it has been considered, for example, that the processing by a lawyer of the data of the opposing party of their client finds its support in the recognition to the latter by article 24.1 of the Constitution of their right to effective judicial protection, which implies, according to paragraph 2, legal defense and the use of relevant means of evidence for the defense of their right. In this sense, the report of February 21, 2001 stated the following:

“In this case, as mentioned, the processing by lawyers and attorneys of the data related to the counterpart of their clients in the litigations in which they exercise procedural representation derives directly from the right of all...”

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citizens to legal assistance, enshrined by Article 24.2 of the Constitutional Text.

Indeed, the requirement for the opponent's consent for the processing of their data by the lawyer or attorney would imply leaving at their disposal the storage of the necessary information for their client to fully exercise their right to effective judicial protection. Thus, the lack of this data may logically imply a reduction in the possibility for the interested party to provide “the relevant means of evidence for their defense,” violating another of the guarantees derived from the aforementioned right to effective protection and restricting the possibility of obtaining the full exercise of this right. (...)

In this way, for the purpose of carrying out the necessary balancing required, it must be considered

whether, taking into account the specific circumstances occurring in the present case, the interest of the third party in accessing certain images should prevail over the right to data protection of the affected individuals whose data is subject to transfer."

The claiming party adds that "(...) Finally, HOTUSA bases its denial decision on its obligation to protect the rights of third parties appearing in the images.

(...) The plaintiff requested access from HOTUSA in the manner already mentioned. The plaintiff needs to know this data (recordings) in order to make an adequate decision regarding their right to judicial protection. And the interest expressed by HOTUSA to justify its illegal denial decision, namely:

"our obligation to protect the data protection rights, privacy, and image of other subjects appearing in the requested video surveillance recordings."

Did not allow it to violate, as it did, the plaintiff's right to what was requested, but also caused harm by obstructing their right to judicial protection.

HOTUSA could, and should have fulfilled its obligation based on the diligent work of the plaintiff, who provided all the necessary elements for this. To the access request, which detailed beyond what was required its own nature and justification, the plaintiff attached, to facilitate HOTUSA's task, an updated photo of themselves for proper identification, a note on the location where the events occurred, and a precise delimitation of the time frame.

Moreover, it was explained that there were no crowds of people in the recordings that would hinder this task, and the alleged protection of third parties is absurd because the plaintiff already knows the identity of the other individuals appearing in the recordings.

It is not the identification of the potential recipient of the plaintiff's procedural activity (identification to which they would also have a right according to the criteria of the AEPD and the jurisprudence contained in the resolutions we cite from the very C/ Jorge Juan, 6

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AEPD). It is the reality of the facts contained in those recordings. And by denying the request of the claimant, as we have stated, HOTUSA has harmed her by violating both her legitimate right of access to the content of the recordings and her right to judicial protection.

If HOTUSA was concerned about the rights of third parties present in the recordings, it could have easily, and should have, taken the necessary measures in this regard. Such as limiting the time frame if it was excessive once the recordings were viewed or blurring the faces of those third parties.

"(..) Regarding the second response dated 19.04.24 mentioned in our FACT 5, in which HOTUSA responded by NOT PROVIDING THE REQUESTED ACCESS by the CLAIMANT, but RATHER PROVIDING A DESCRIPTION OF THE SURVEILLANCE IMAGES, we consider that HOTUSA again failed to comply with its obligation as data controller.

While it may be acceptable in other circumstances different from our case that the requested recordings are not provided and are replaced by a description of the facts contained therein, such action is not applicable to the claimant's request. This is both for the reasons already stated in our immediate previous Legal Basis 2, as well as for those that will be presented later."

The claiming party continues to present various issues and concludes that "(...) For all the above, we consider that the only correct way in law to address the claimant's request is to provide her with access to the recordings. That the narrative given by HOTUSA lacks the minimum reliability for us. That if HOTUSA does not provide the claimant with those recordings, there will be a serious violation of the Fundamental Rights of the claimant. On one hand, the violation of her right of access to her personal data. And on the other, a violation of her right to judicial protection since it is fair that HOTUSA delivers those recordings to the claimant, as she has credibly demonstrated her intention to explore other actions, including criminal ones, for which it is necessary to address her legitimate request. Without any of this jeopardizing any rights of third parties present in the recordings, nor can HOTUSA rely on its proclaimed right to defense."

FIFTH: Having granted a hearing to the responding party, there is no record that any response has

been submitted to this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to provide evidence of having given the complainant the appropriate response.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on February 6, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to..."

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to address requests for the exercise of the rights of the data subject under this Regulation.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected individual to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so.

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On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data involved, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties, such as the statements of the claiming party: "(...) What HOTUSA has done is, apart from failing to fulfill its obligation as the data controller by not granting access to the requested information, to use the personal data of the claimant in a manner not provided for or permitted by the GDPR or the LOPDGDD. That is, for a purpose different from that which justified its acquisition.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, from the examination of the documentation provided, it has been established that the claiming party requested a copy of some surveillance images from the responding party, and that they did not provide them, arguing that they did not have to be provided in advance but would be presented at the time of the judicial procedure between the parties. However, the responding party did not have the opportunity to submit those images to the Court because it informed them of the claimant's withdrawal from continuing with the judicial procedure.

The responding party states that "(...) once the reasons for denying the right of access have disappeared due to the conclusion of the judicial procedure in which HOTELES TURISTICOS UNIDOS S.A. was the defendant, access to the data has been granted through a description of the surveillance images, and proof of this is Document 1 that we attach."

Likewise, the claiming party expresses their disagreement because they have been provided with a document that recounts what happened and have not been provided with the images, stating that "(...) there were no crowds of people in the recordings."

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This task will be made more difficult, and furthermore, the alleged protection of third parties is absurd because the plaintiff already knows the identity of the other individuals involved in the recordings."

The Guidelines 01/2022 on the rights of data subjects, Right of access, adopted on March 28, 2023, by the European Data Protection Board states:

"5. The practical objective of the right of access is to allow individuals to have control over their own personal data. In order to achieve this objective effectively in practice, the GDPR aims to facilitate this exercise through a series of guarantees that enable the data subject to easily exercise this right, without unnecessary restrictions, at reasonable intervals, and without excessive delays or costs. All of this should lead to a more effective application of the data subject's right of access in the digital age, part of which, in a broader sense, is also the data subject's right to lodge a complaint with the supervisory authority and the right to effective judicial protection.

(...)

Limits and restrictions

The GDPR allows certain limitations on the right of access. There are no other exemptions or exceptions. The right of access is not subject to any general reservation of proportionality regarding the efforts that the data controller must make to satisfy the request of the data subject.

In accordance with Article 15, paragraph 4, the right to obtain a copy shall not adversely affect the rights and freedoms of others. The EDPB believes that these rights must be taken into account not only when granting access through the provision of a copy but also if access to the data is facilitated by other means (for example, on-site access). However, Article 15, paragraph 4, does not apply to additional information about the processing, as set out in Article 15, paragraph 1, letters a) to h). The data controller must be able to demonstrate that the rights or freedoms of others would be adversely affected in the specific situation. The application of Article 15, paragraph 4, should not result in the total denial of the data subject's request; it would only lead to the exclusion or illegibility of those parts that may have negative effects on the rights and freedoms of others.

Article 12, paragraph 5, of the GDPR allows data controllers to refuse requests that are manifestly unfounded or excessive, or to charge a reasonable fee for such requests. These concepts must be

interpreted strictly. Since there are very few prerequisites regarding access requests, the scope of considering a request to be manifestly unfounded is quite limited. Excessive requests depend on the specific characteristics of the sector in which the data controller operates. The more frequently changes occur in the data controller's database, the more often the data subject may be allowed to request access without it being excessive. Instead of denying access, the data controller may decide to charge a fee to the data subject. This would only be relevant in the case of

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excessive requests in order to cover the administrative costs that may arise from such requests. The data controller must be able to demonstrate the manifestly unfounded or excessive nature of a request.

(...)

13. Given the broad objective of the right of access, this objective of the right of access is not suitable to be analyzed as a prerequisite for the exercise of the right of access by the data controller in the context of their assessment of access requests. Therefore, data controllers should not evaluate "why" the data subject is requesting access, but only "what" the data subject is requesting (see section 3 on the analysis of the request) and whether there are personal data concerning that person (see section 4). Thus, for example, the data controller should not deny access because they know or suspect that the data subject may use the requested data to defend themselves in court in the event of dismissal or commercial dispute with the said controller. Regarding the limits and restrictions of the right of access, see section 6.

Example 1: An employer has dismissed a worker. A week later, the person decides to gather evidence to file a claim for wrongful dismissal against this former employer. In this regard, the person writes to the former employer requesting access to all personal data concerning them, as the data subject, that the former employer processes, as the data controller.

The data controller will not evaluate the intention of the data subject, and the data subject will not have to provide the controller with the reason for the request. Therefore, if the request meets all other requirements (see section 3), the data controller must fulfill the request, unless the request is manifestly unfounded or excessive in accordance with Article 12, paragraph 5, of the GDPR (see section 6.3), which the data controller must demonstrate.

(...)

2.2.3 Possible limitation of the right of access

33. Finally, in the context of the right of access, a specific limitation is provided for in Article 15, paragraph 4, which states that possible negative effects on the rights and freedoms of others must be taken into account. Section 6 explains the issues related to the scope and consequences of this limitation, as well as the additional limits and restrictions established in Article 12, paragraph 5, or in Article 23 of the GDPR.

(...)

6.2 Article 15, paragraph 4, of the GDPR

168. In accordance with Article 15, paragraph 4, of the GDPR, the right to obtain a copy shall not adversely affect the rights and freedoms of others.

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Explanations regarding this limitation are provided in the fifth and sixth recitals of considering 63. This right must not negatively affect the rights and freedoms of third parties, including trade secrets or intellectual property, and, in particular, the intellectual property rights that protect software programs. However, these considerations must not result in the refusal to provide all information to the interested

party. When interpreting Article 15, paragraph 4, of the GDPR, special precautions must be taken to avoid unjustifiably expanding the restrictions established in Article 23 of the GDPR, which are only permitted under strict conditions.

169. Article 15, paragraph 4, of the GDPR applies to the right to obtain a copy of the data, which is the main modality of granting access to the processed data (second component of the right of access). It is also applicable, and the rights and freedoms of others will be taken into account, if access to personal data is exceptionally granted by means other than a copy. (...)

(...)

172. The general concern that the rights and freedoms of third parties may be affected by the fulfillment of the access request is not sufficient to invoke Article 15, paragraph 4, of the GDPR. The data controller must be able to demonstrate that, in the specific situation, the rights or freedoms of third parties would indeed be affected.

(...)

173. Regarding recital 4 of the GDPR and the justification of Article 52, paragraph 1, of the Charter of Fundamental Rights of the European Union, the right to the protection of personal data is not an absolute right⁹⁸. Therefore, the exercise of the right of access must also be weighed against other fundamental rights in accordance with the principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR shows that fulfilling the request has negative effects on the rights and freedoms of other participants (phase 1), the interests of all participants must be weighed considering the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data. The data controller must attempt to reconcile the conflicting rights (phase 2), for example, by applying appropriate measures that mitigate the risk to the rights and freedoms of others. As emphasized in recital 63, the protection of the rights and freedoms of others under Article 15, paragraph 4, of the GDPR must not result in the refusal to provide all information to the interested party. This means, for example, when applying the limitation, that information relating to other individuals must be rendered unreadable to the extent possible instead of refusing to provide a copy of the personal data. (...)

(...)

174. If data controllers refuse to respond to a request for full or partial access rights under Article 15, paragraph 4, of the GDPR, they must inform the interested party of the reasons without delay and, at the latest, within the timeframe of

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one month (Article 12, paragraph 4, of the GDPR). The statement of reasons must refer to the specific circumstances so that the data subjects can assess whether they wish to take action against the denial. It must include information about the possibility of filing a complaint with a supervisory authority (Article 77 of the GDPR) and obtaining effective judicial protection (Article 79 of the GDPR)."

The obligation to provide a copy contained in Article 15.3 of the GDPR refers only to a copy of the personal data being processed, but not necessarily to a reproduction of the original documents containing that personal data.

Thus, the European Data Protection Board clarified the content of the right of access recognized in Article 15 of the GDPR in paragraph 23 of the aforementioned Guidelines 01/2022, stating the following: "The obligation to provide a copy should not be understood as an additional right of the data subject, but rather as a modality of access to the data. It reinforces the right of access to the data and helps to interpret this right because it makes clear that access to the data under Article 15, paragraph 1, includes complete information about all the data and cannot be understood as granting only a summary of the data. At the same time, the obligation to provide a copy does not aim to broaden the scope of the right of access: it refers (only) to a copy of the personal data being processed, not necessarily to a reproduction of the original documents. More generally, there is no additional information provided to the data subject when a copy is provided: the scope of the information that

must be included in the copy is the scope of access to the data under Article 15, paragraph 1, which includes all the information necessary for the data subject to understand and verify the legality of the processing.”

For its part, the judgment of the Court of Justice of the European Union of May 4, 2023 (Case C-487/21) concludes that Article 15, paragraph 3, first sentence, of the GDPR must be interpreted to mean that “the right to obtain from the data controller a copy of the personal data being processed implies that an authentic and intelligible reproduction of all that data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the need to take into account, in this regard, the rights and freedoms of third parties.”

In summary, there is no obligation to provide a copy of the images, and it should be understood that, in this case, the right has been satisfied with the delivery of a complete description, and therefore, the claim presented is to be estimated on formal grounds.

Regarding the statements of the claimant indicating that “(...) the alleged protection of third parties is absurd because the claimant already knows the identity of the other individuals in the recordings,” it should be noted that this assertion cannot be accepted, taking into account the provisions in the previous paragraphs.

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In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE on formal grounds, the claim made by Ms. A.A.A. against HOTELES TURÍSTICOS UNIDOS, S.A. However, it is not appropriate to issue a new certification by the respondent, as the response was issued late, without requiring additional actions by the controller.
SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to HOTELES TURÍSTICOS UNIDOS, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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